

# CONSTITUTION OF THE THIRD REPUBLIC

**BACKGROUND, STRUCTURE, MAIN FEATURES, AMENDEMENTS**

***“No Constitution in the world is ever perfect. All Constitutions undergo transformation through amendments in the light of a nation's experience. But no Constitution is ever workable without the patience, the tolerance, the search for accommodation that is necessary to the preservation of democracy.”***

Mr. Zulfiqar Ali Bhutto, the then Prime Minister on approval of the Constitution on April 10, 1973 in the National Assembly.

***“The Constitution of the Islamic Republic of Pakistan is the Constitution of the people of Pakistan and they are best suited to speak for it. The document is their property and they are best suited to protect it. It is our hope and belief that under the inspiring guidance of God Almighty, the people of Pakistan will speak for their Constitution and will protect it for all times to come.”***

Zulfiqar Ali Bhutto, the then Prime Minister on authentication of the Constitution on April 12, 1973 at a public ceremony in Rawalpindi.

# BACKGROUND

- The constitution 1956 and 1962 failed to provide the aspired political stability to the country. The subsequent years after imposition of martial laws were highly tumultuous costing Pakistan its Eastern wing.
- The leftover country was first governed by a unique proposition of civilian Chief Martial Law Administrator till the interim constitution was adopted by the National Assembly. The assembly constituted a committee headed by Hafiz-ud-Din Pirzada to formulate the permanent constitution for Pakistan.
- The committee did its work in shortest possible time and the National Assembly adopted the constitution on 10<sup>th</sup> April unanimously.

- The constitution of Pakistan 1973 was enforced on 14<sup>th</sup> Aug 1973. It consists of 280 articles and 7 schedules with Objective Resolution forming the preamble of the constitution beside 25 amendments which have been made since then.
- It is regarded as the landmark accomplishment of Bhutto's era as it was a unanimous act of the parliament with complete consensus of all the political parties. However, many twists and turns have been witnessed ever since its enforcement but still it is the supreme law of land and the sacrosanct instrument which reigns supreme in governance of the state.

# STRUCTURE OF THE CONSTITUTION OF PAKISTAN 1973

The Constitution of Islamic Republic of Pakistan 1973 consists of 12 Parts arranged in 27 Chapters, 280 Articles (due to various amendments actually risen to 303), five Schedules, Preamble and one annexure.

## **PART ONE**

### **Introductory [Articles 1-6]**

- The Republic, its territories, the State religion, nature of the State (elimination of exploitation, equality before law) and loyalty to State and obedience to Constitution.

## **PART TWO**

- **CHAPTER ONE:** Fundamental Rights [Article 8-28]
- **CHAPTER TWO:** Principles of Policy [Articles 29- 40]

## **PART THREE**

### **The Federation of Pakistan**

- **CHAPTER ONE:** The President [Articles 41-49]
- **CHAPTER TWO:** Majlis-e-Shoora (Parliament) [Articles 50-89]
- **CHAPTER THREE:** The Federal Government [Articles 90-100] Provinces

## **PART FOUR**

### **Provinces**

- **CHAPTER ONE:** The Governors [Articles 101-105]
- **CHAPTER TWO:** Provincial Assemblies [Articles 106-128]
- **CHAPTER THREE:** The Provincial Governments [Articles 129-140A]

## **PART FIVE**

### **Relations between Federation and Provinces**

- **CHAPTER ONE:** Distribution of Legislative Powers [Articles 141-144]
- **CHAPTER TWO:** Administrative Relations between the Federation and Provinces [Articles 145-152]

- **CHAPTER THREE:** Special Provisions [Articles 153-159] (Council of Common Interests, National Economic Council, electricity, priority of requirement of natural gas and broadcasting and telecasting)

## **PART SIX**

### **Finance, Property, Contracts and Suits**

- **CHAPTER ONE:** Finance [Articles 160-165A]
- **CHAPTER TWO:** Borrowing and Audit [Articles 166-171]
- **CHAPTER THREE:** Property, Contracts, Liabilities and Suits [Articles 172-174]

## **PART SEVEN**

### **The Judicature**

- **CHAPTER ONE:** The Courts [Articles 175-175A]
- **CHAPTER TWO:** The Supreme Court of Pakistan [Articles 176-191]



- **CHAPTER THREE:** The High Courts [Articles 192-203]
- **CHAPTER THREE A:** Federal Shariat Court [Articles 203A-203J]
- **CHAPTER FOUR:** General Provisions Relating to the Judicature [Articles 204-212]

## **PART EIGHT**

### **Elections**

- **CHAPTER ONE:** Chief Election Commissioner and Elections Commissions [Articles 213-221]
- **CHAPTER TWO:** Electoral Laws and Conduct of Elections [Articles 222-226]

## **PART NINE**

### **Islamic Provisions [Articles 227-231]**

## **PART TEN**

### **Emergency Provisions [Articles 232-237]**

## **PART ELEVEN**

### **Amendment of Constitution [Articles 238-239]**

## **PART TWELVE**

### **Miscellaneous**

- **CHAPTER ONE:** Services [Articles 240-242]
- **CHAPTER TWO:** Armed Forces [Articles 243-245]
- **CHAPTER THREE:** Tribal Areas [Articles 246-247]
- **CHAPTER FOUR:** General [Articles 248-259]
- **CHAPTER FIVE:** Interpretation [Articles 260-264]
- **CHAPTER SIX:** Title, Commencement and Repeal [Articles 265-266]
- **CHAPTER SEVEN:** Transitional [Articles 267-280]

## **Annex**

- The Objectives Resolution

## **Schedules**

- **First Schedule:** Laws exempted from the operation of Article 8(1) and (2)
- **Second Schedule:** Election of President
- **Third Schedule:** Oaths of Office
- **Fourth Schedule:** Legislative Lists
- **Fifth Schedule:** Remuneration and Terms and Conditions of Service of Judges
- **Sixth Schedule:** Sanction of President for alteration of laws
- **Seventh Schedule:** Related to the amendment of laws

# MAIN FEATURES ISLAMIC PROVISIONS

- Constitution begins with the definition of Islam.
- Pakistan is a federal Republic, to be known as Islamic Republic of Pakistan.
- Islam shall be the State Religion of Pakistan.
- Makes the definition of a Muslim.
- The President and the Prime Minister shall be Muslims believing in the oneness of God, the Book of Allah and the last Prophet-hood of Muhammad(PBUH)
- Includes Objective resolution.
- The Council of Islamic Ideology shall be set up.
- Prohibition of Alcohol and Gambling.
- Federal Shariat Court through 8<sup>th</sup> amendment.
- Zakat and Ushar(1980)
- Hadood Ordinance.(1977)

# THE PRESIDENT

## **ELIGIBILITY**

- Should be a Muslim.
- Not less than 45 years of age.

## **ELECTION/REMOVAL(IMPEACHMENT)**

- To be elected by members of National assembly and Provincial assemblies for 5 years.
- Could be removed only by the Parliament by impeachment for gross misconduct, physical or mental disability and for violation of the Constitution.

## **POWERS**

- Head of State
- Emergency Powers
- Financial powers
- Can address and Dissolve the assembly on advice of Prime Minister.
- Can summon the session of Parliament.
- Power to appoint the Governors, Attorney General, Auditor General, Chiefs of Staff of Army, Air Force, Navy .

- Head of Armed Forces.
- Can assume executive powers of the Provinces
- Power to pardon, commute of sentences.
- Chairman of Senate will be acting President in case of incapacitation or absence.

# LEGISLATURE (PARLIAMENTARY SYSTEM)

- Bi-Cameral Legislature
- National Assembly and Senate
- 342 total seats of National Assembly.
- 18 years voter age.
- 25 years Candidate age.
- At least three sessions of National Assembly in a year.



- The assembly to choose Speaker and Deputy Speaker from its own members in its first session.
- Life of Assembly is 5 years but could be dissolved by the President on advice of Prime Minister earlier.
- Senate consisted of total of 104 members on basis of proportional representation from Provinces.(14 general+4 technocrats from each Province+4 women seats 4 non-muslim seats), 8 FATA, 4 capital territory.
- National Assembly consisted of total 342 members (Baluchistan-17, KPK-43, Punjab-183, Sindh-61, Federal Capital-02, FATA-12, non-muslims-10)

# PRIME MINISTER AND CABINET

- Leader of House and Head of the Government.
- Elected by National assembly after 30 days of general elections
- Must enjoy the confidence of National Assembly.
- Real executive authority vested in the Prime Minister.
- He is fully empowered to appoint/dismiss his Ministers/Cabinet
- Collectively responsible to the National Assembly.

# FEDERAL STRUCTURE

- Comprised of
  - Four Provinces:- Punjab, Sind, NWFP (KPK) and Baluchistan
  - The Islamabad Capital territory
  - The Federal administered tribal Areas (FATA), merged in KPK
  - Such states and territories as are or may be included in Pakistan whether by accession or otherwise
  - AJK, Gilgit Baltistan
- Autonomy for Provinces.
- Residuary powers were given to Provinces.

- Federal govt. provides security to Provinces in any case.
- Provinces are bound to follow Federal government's decisions.
- Machinery for harmonious relations between Center and Provinces:-
  - The Council of Common Interests
  - National Economic Council
  - National Finance Commission.

# JUDICIARY

- Independence of Judiciary was guaranteed.
- **Supreme Court:-** Headed by Chief Justice with 6 judges.
- Judges could hold office till the age of 65.
- Had original as well as appellate jurisdiction.
- Can take any step to ensure Justice
- Power to review any judgment or any order made by it.
- Head of Judiciary.
- **High Court:-**
  - Each Province had a High Court,
  - consisted of Chief Justice and other Judges.
  - Appointed by the President of Pakistan with consent of Chief Justice of Pakistan, now to be appointed by Judicial Commission.

# FUNDAMENTAL RIGHTS

- All Fundamental rights are guaranteed under the Umbrella of Judiciary.

# MAJOR AMENDMENTS

- Redefined the boundaries of Pakistan and removed references to East Pakistan.(1<sup>st</sup>)
- Declared the status of Ahmadis as minority and as 'non-Muslim'.(2<sup>nd</sup>)
- 3<sup>rd</sup>, 4<sup>th</sup>, 5<sup>th</sup> and 6<sup>th</sup> amendments were relating the judiciary.
- Enables the Prime Minister to obtain a vote of confidence of the people of Pakistan.(7<sup>th</sup>)
- Changed Pakistan's government from a Parliamentary system to a Semi-presidential system by giving the President a number of additional powers.(8<sup>th</sup>)

- Stripped the President of Pakistan of his reserve power to dissolve the National Assembly of Pakistan, and thereby triggering new elections and dismissing the Prime Minister.(13<sup>th</sup>)
- Made changes dealing with the office of the President and the reversal of the effects of the Thirteenth Amendment.(17<sup>th</sup>)
- Removed the power of President of Pakistan to dissolve the Parliament unilaterally.(18<sup>th</sup>)
- Related to the appointment of chief justice.(19<sup>th</sup>)
- For Free and Fair Elections.(20<sup>th</sup>)



- For speedy trial of already pending cases in courts against terrorists, creation of military courts (21st)
- amends eligibility and age requirements for members of the Election Commission, provides for continuity, and adds electoral rolls for local governments as a responsibility of the Election Commission. (22nd)
- modifies allocation of National Assembly seats among provinces based on the results of the 2017 census (24<sup>th</sup>)
- Merging of FATA in KPK (25<sup>th</sup>)